

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

জেলা: Kushtia

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
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	Md. Jamshed @ Sawkat Malitha	আবেদনকারী
মাধ্যম	Mr. Raghieb Rauf Chowdhury, Advocate	বনাম

The State

Ms. Shiuli Khanom, D.A.G along with
Mr. S.M. Emamul Musfiqur, A.A.G
Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	04.11.2024	In preferring the Criminal Revision under section 439 read with section 31 of the Code of Criminal Procedure there had been a delay of 166 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 166 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite party to show cause as to why the judgment and order dated 19.03.2024 passed by the learned Additional Sessions Judge, 1st Court, Kushtia in Criminal Appeal No. 303 of 2023 dismissing the appeal and thereby affirming the judgment and order of conviction and sentence dated 17.10.2023 passed by the learned Chief Judicial Magistrate, Kushtia in G.R. Case No. 72 of 2021 arising out of Mirpur Police Station Case No. 22 dated 25.03.2021 convicting the convict petitioner under section 324 of the Penal Code, 1860 and sentencing him to suffer rigorous imprisonment for 02 (two) years and to pay fine of Tk. 5000/- (five thousand) in default of which 06 (six) months simple imprisonment and convicting the convict petitioner under section 307 of the Penal Code, 1860 and sentencing him to suffer rigorous imprisonment for 03 (three) years and to pay a fine of Tk. 5000/- (five thousand) in default of which 08 (eight) months simple imprisonment should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Md. Jamshed @ Sawkat Malitha, son of late Oli Malitha be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Kushtia. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটর একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টর আদশর আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩